

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

September 22, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Dr. Rinne (arriving at 6:25 p.m.), Mr. Segrave and Mr. Valdez. Absent: Mr. Pierson. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Erik Rasmussen, Deputy City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Collins and Mr. Laybourn, Mayor Spiker announced agenda items #6, 7, 25(a)(b)(c)(d), 27(b) and 29(a) and (b) would be removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

Mayor Spiker recognized the Cheyenne Board of Public Utilities, and specifically Clint Bassett, BOPU Water Conservation Specialist, for receiving the national WaterReuse Association 2008 Public Education Program of the year award for the Cheyenne Water Reuse Program. Mayor Spiker presented Mr. Bassett with the award plaque, and noted plaque wording indicating BOPU's dedication to the water reuse community through education programs that enhance better appreciation of water resources, management and conservation.

MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON SEPTEMBER 8, 2008. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON SEPTEMBER 15, 2008. Mr. Brown moved to approve, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, City Treasurer Barb Dorr provided information available on the following vouchers payable to: Chamber of Commerce (\$4,617.00), annual City membership dues renewal; Habitat for Humanity (\$60,899.78), reimbursements for Messenger Court infrastructure project (\$51,732.64) and Katrina project (\$9,167.14); JM Rodent Control (\$3,149.30), rodent control by Weed & Pest at several facilities and grounds, and Douglas Selby (\$6,832.57), concept design for Cheyenne Depot Plaza (building) project (current fiscal year budget and proposed State Loan and Investment Board

consensus grant funds). During inquiry, Mayor Spiker provided additional information on Chamber of Commerce membership benefits, and professional preliminary design services for the Depot Plaza building. Motion carried. Voting “yes” – all members of the governing body present.

Mayor Spiker opened a public meeting for the purpose of receiving comments and input to discuss the use of 2003-2006 1% Optional Sales Tax Overage Funds in the amount of \$147,280.00 for the purpose of reimbursing approved expenditures from the 2007-2010 Parks & Recreation Department’s 1% Optional Sales Tax Allocation. Todd Feezer, Parks and Recreation Dept., provided information on the purpose of re-allocating the funds due to expenditures affiliated with the new Parks Shop property recently purchased by the City. There being no further comments or input and purpose of the public meeting having been met, Mayor Spiker closed the public meeting.

“AN ORDINANCE VACATING MCCOMB AVENUE BETWEEN W. LINCOLNWAY AND W. 17TH STREET AND THE 16-FOOT ALLEY WITHIN BLOCK 401, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED BETWEEN MISSILE DRIVE AND MCCOMB AVENUE AND BETWEEN W. LINCOLNWAY AND W. 17TH STREET).” Hu Wang, property owner in the near vicinity, spoke in opposition to the vacation; questioned the vacation process, and expressed concerns with not receiving notice of the proposed action and vacation procedures. He provided information on the number of tenants who rent property from him in the area and commented that closing the street would affect the tenants, citing access and safety concerns, particularly during inclement weather. (Clerk’s note: Dr. Rinne joined the meeting during comments.) Further comments from Mr. Wang included the topics of traffic and traffic routes, graffiti and garbage-type waste disposal in the area, and property values (information and photos distributed and referenced by Mr. Wang on file with office of City Clerk). John Rogers, attorney representing applicants requesting vacation (Robert Smith and Jim Hancock with Wyoming Grand, LLC (involved in the Microtel hotel project)), addressed notification procedures to adjacent property owners as required in the vacation application instructions, and stated Mr. Wang did not receive the mailed written notification as the Laramie County Assessor’s office inadvertently had an inappropriate address, utilized by the agent issuing notification notices, on file for Mr. Wang. He clarified notice concerning the proposed vacation was posted on the property and was also advertised in the newspaper, and noted Mr. Wang’s presence and participation involving the proposed vacation action at recent City Council and committee meetings. He spoke in favor of the vacation; reviewed beneficial aspects surrounding the street vacation; provided a diagram (on file with office of City Clerk) of the property reflecting the area and access points; discussed street and internal property lighting, and responded to concerns raised by Mr. Wang involving street lighting, drainage, and neighboring property values due to the hotel project. Robert Smith, co-owner, Microtel hotel project, reviewed a brief history of the site involving the former Frontier Motel and spoke in favor of the vacation, stating it will help with traffic control in the area and allow for better, safer access to the property. Larry Perry, Terrestrial Surveying and Mapping, spoke regarding Mr. Wang’s notification concern, advising Laramie County’s GIS system used for locating property information has a disclaimer on its website that it is not liable for the accuracy and completeness of system data. Reporting for Public Services Committee, Mr. Collins advised there was no recommendation on the item. Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Upon inquiry regarding the storm sewer system, City Engineer Ken Lewis provided information generally on the Public Works Dept. maintenance program, and Mr. Rogers stated the storm sewer infrastructure had recently been inspected by the City and is on the schedule for periodic

maintenance and commented that the existing inlets may be replaced during the hotel construction project. Discussion included the following topics: Drainage; storm sewer maintenance schedule; location of paving of Taco John's Ice and Events Center parking lot and curb tie-ins (information provided by Todd Feezer, Parks and Recreation Dept.); area development improvements and maintenance responsibilities; raising of street "crown" on W. 17th St.; safety; proposed redevelopment of the area (i.e. new hotel project); access and lighting issues; street encroachment involving Mr. Smith's residence, and snow plowing of streets during winter months to maintain accessibility. During discussion and upon inquiry, Larry Gallagher, Summit Engineering, reviewed drainage development plans for the Microtel property; Mr. Lewis provided information concerning the street encroachment, and Martin Matsen, Development Director, reviewed current zoning designation (CB) and allowable uses for property located north of the Microtel hotel site. John Fafoutakis commented on maintenance schedules of storm sewers in the community. Discussion continued on drainage and street lighting pursuant to a memorandum issued by Mr. Matsen (on file with office of City Clerk). Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no". (#3826)

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS A TRACT OF LAND SITUATED IN A PORTION OF THE NW $\frac{1}{4}$ OF SECTION 8, AND A PORTION OF WALTERSCHEID BOULEVARD SITUATE IN A PORTION OF THE NE $\frac{1}{4}$ OF SECTION 7 AND A PORTION OF THE NW $\frac{1}{4}$ OF SECTION 8, T.13N., R.66W. OF THE 6TH P.M. AND A PORTION OF WEST JEFFERSON ROAD LYING BETWEEN THE WESTERLY RIGHT-OF-WAY LINE OF THE SOUTH GREELEY HIGHWAY AND THE WEST LINE OF TRACT 16 ALLISON TRACTS, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO FOX FARM RD. AND E. OF AND ADJACENT TO WALTERSCHEID BLVD.)." R.C. Reiman, manager for Gateway South, referenced previous discussions held regarding sewer and water service concerns, reiterating that South Cheyenne Water and Sewer District has assured him in writing (copy distributed and on file with office of City Clerk) that the District will provide services for the property. Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Comment followed on concerns with South Cheyenne Water and Sewer service policies vs. services provided to annexed properties through the Board of Public Utilities. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Segrave and Mr. Valdez voting "no". (#3827)

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE W $\frac{1}{2}$ OF TRACT 10, AIRPORT VALLEY TRACTS, LARAMIE COUNTY, WY (AKA 5905 CROW ROAD)." Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body present. (#3828)

"AN ORDINANCE VACATING THE ALLEY IN BLOCK ONE AND THE ALLEY IN BLOCK 2 OF OSTDIEK SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF WILLS ROAD, BETWEEN CHARLES AND CHEYENNE STREETS)." Larry Perry, Terrestrial Surveying and Mapping, provided information concerning the vacation request, stating the alley is not used nor is it maintained by the City; advised the lots next to the alley are owned by the person requesting vacation; indicated the frontage of each lot has off-street parking, and explained why alley access from the lots (currently fenced) is not needed. Mr. Collins advised there was no

recommendation on the item from Public Services Committee. Mr. Collins moved to approve on second reading, seconded by Mr. Brown. Comment followed on the ability of the neighborhood to protect the proposed vacated area relative to vandalism and graffiti. Motion carried. Voting “yes” – all members of the governing body present.

Following a five minute recess, Mayor Spiker reconvened the meeting at 7:55 p.m.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW-DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO NB NEIGHBORHOOD BUSINESS DISTRICT FOR THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF STOREY BOULEVARD AND SYCAMORE ROAD).” Dr. Rinne declared a conflict of interest due to personal property ownership in the vicinity and vacated Council Chambers. Debb Roden, Woodhouse Law Office, representing Heather and Bob Parry, owners of the property proposed to be re-zoned, reviewed adjacent property uses, and past and proposed future developments in the area. She reviewed PlanCheyenne criteria, explaining the property meets long-term growth plans and principles relative to redevelopment of an existing structure, and advised the proposed property use (limited retail business) will remain residential in appearance and will serve as a buffer between commercial and residential uses. She submitted letters in support of the zone change (on file with the office of City Clerk). Bob Parry, property owner, spoke in favor of the zone change; provided information on proposed retail use of the property; reviewed current growth and development changes in the area which he believes support the zone change, and discussed recent annexation of the property. April Brimmer Kunz, Brent Kunz, Katharine Kunz, and Sharon Knudson, nearby residents, spoke in opposition to the zone change and its effect on the residential neighborhood. Topics presented and discussed included: Visual aesthetics; protections afforded through zoning and concern with spot zoning; water and sewer access/costs for properties in the area that may be annexed in the future; overall future of the vicinity as well as the whole area from Storey east to the Mustang Ridge subdivision relative to commercial vs. residential uses; traffic concerns; consistency regarding zoning decisions; maintaining residential integrity of the area; restrictions for types of uses that will be allowed if re-zoning is approved; area developments, and comments that the proposed property use does not meet PlanCheyenne criteria (copy of excerpt from PlanCheyenne submitted and on file with office of City Clerk). Speaking in favor of the zone change and supporting small business endeavors were: Tim Francois, Jackson’s Sports Bar & Grill; Brandon Bailey, local artist, and residents David McWain, Theresa Hanson, and Jennifer Jacobson. Ms. Roden responded to comments made concerning spot zoning, and other similar proposed zone changes within the City that have not been approved. John Fafoutakis requested that certain types of businesses be prevented from operating in the area with Mayor Spiker clarifying that regulations are in place to prevent adult type businesses from operating unless first approved by the governing body. Paula Qualls, Planning Commission member, commented on a similar past situation involving a zone change for a business that was denied by the Commission, and spot zoning. Mr. Collins advised there was no recommendation on the item from Public Services Committee. Mr. Brown moved to approve on second reading, seconded by Mr. Segrave. Discussion included the following topics: Spot zoning; definition of neighborhood; neighborhood businesses; proposed future development (townhomes) north of the area; protecting existing neighborhoods; future area

development that may include residential and commercial uses, and PlanCheyenne guidelines. Motion failed (due to a tie vote). Voting “yes” – Mr. Brown, Mr. Segrave, Mr. Valdez and Mayor Spiker. Voting “no” - Ms. Broyles, Ms. Case, Mr. Collins, and Mr. Laybourn.

“AN ORDINANCE AMENDING SECTION 2.64.090, DEMOLITION PERMIT REVIEW, OF CHAPTER 2.64, HISTORIC PRESERVATION BOARD, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE CHEYENNE CITY CODE, PERTAINING TO APPLICATIONS FOR DEMOLITION AND MOVING PERMITS INVOLVING CERTAIN BUILDINGS AND STRUCTURES” -- referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE DELETING AND RECREATING SECTION 2.04.142 (C), CONSENT AGENDA, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF THE CHEYENNE CITY CODE, PERTAINING TO THE MEETING AGENDA FORMAT FOR REGULAR MEETINGS OF THE GOVERNING BODY OF THE CITY OF CHEYENNE” -- referred to Public Services Committee (sponsors - Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Segrave and Mayor Spiker).

“AN ORDINANCE AMENDING SECTION 6.12.020, RABIES TAGS, OF CHAPTER 6.12, DOG AND CAT REGISTRATION, AND SECTION 6.16.020, RABIES VACCINATION REQUIRED, OF CHAPTER 6.16, RABIES CONTROL, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING” -- referred to Public Services Committee (sponsors - Mr. Pierson and Mayor Spiker).

Dr. Rinne returned to Council Chambers.

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF DALE SUBDIVISION, A REPLAT OF LOTS 1, 2, 3, 4 AND PORTIONS OF LOTS 5, 8, 9, 10 AND 11, BLOCK 9, KELLEY ADDITION, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF CONVERSE AVENUE AND NATIONWAY).” Mr. Collins moved to adopt with staff recommendations #1 and 2, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#5072)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK, A REPLAT OF BLOCK 1, LOT 1, KIWANIS ADDITION; A PORTION OF 11TH STREET, ORIGINAL CITY; THE HOLMQUIST ADDITION BEING A PORTION OF BLOCKS 512 AND 513, ORIGINAL CITY INCLUDING A PORTION OF VACATED 10TH STREET AND AMES AVENUE; A PORTION OF BLOCKS 2, 3, 4, 8 AND 9, AND ALL OF BLOCKS 5, 6 AND 7, INTERIOR HEIGHTS SUBDIVISION, THOSE PARCELS DESCRIBED IN WARRANTY DEEDS BOOK 1841 AT PAGE 889 AND BOOK 1841 AT PAGE 938, AND A PORTION OF THE S½ OF SECTION 6, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED SOUTH AND EAST OF AND ADJACENT TO PARSLEY BOULEVARD, WEST OF DILLON AVENUE).” Mr. Collins moved to adopt with staff recommendations #1 and 2, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#5073)

[CA] “A RESOLUTION AUTHORIZING THE USE OF 2003-2006 1% OPTIONAL SALES TAX OVERAGE FUNDS IN THE AMOUNT OF \$147,280.00 FOR THE PURPOSE OF REIMBURSING APPROVED EXPENDITURES FROM THE 2007-2010 PARKS AND RECREATION DEPARTMENTS 1% OPTIONAL SALES TAX ALLOCATION” -- referred to Finance Committee (sponsors - Mr. Brown, Mr. Collins and Mr. Pierson).

[CA] “A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO THE 2009 COUNTYWIDE CONSENSUS BLOCK GRANT APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD” -- referred to Finance Committee (sponsors - Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Segrave and Mayor Spiker).

[CA] “A RESOLUTION REAPPROPRIATING THE FISCAL YEAR 2009 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. §16-4-112 AND §16-4-113” -- referred to Finance Committee (sponsor - Mr. Segrave).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR JACOBY FLATS SUBDIVISION, A REPLAT OF TRACT 5, CHEYENNE IRRIGATED GARDENS, LARAMIE COUNTY, WY (LOCATED AT 2014 GORDON ROAD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

Preliminary Plat for Candlewood Subdivision, a replat of the W½ of Tract 10, Airport Valley Tracts and Lots 2 and 3, Block 1, Guy Subdivision, Cheyenne, Wyoming (located east of and adjacent to Crow Road, south of Storey Boulevard). Mr. Collins advised there was no recommendation on the item from Public Services Committee. Mr. Collins moved to acknowledge receipt with staff recommendations #1 through 5, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Rinne voting “no”.

LEASES/CONTRACTS/LEGAL:

Agreement between Laramie County School District No. 1 and the City of Cheyenne, Office of Youth Alternatives, for counseling services to elementary and secondary age children who are attending the PEP/TRC Center. Reporting for Finance Committee, Mr. Segrave moved to approve in an amount not to exceed \$42,765.00, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present. (#5302)

Agreement between Laramie County School District No. 1 and the City of Cheyenne, Office of Youth Alternatives, for family counseling for school referred students who are in I.E.P.s. Mr. Segrave moved to approve in an amount not to exceed \$8,740.00, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#5303)

Agreement between Laramie County School District No. 1 and the City of Cheyenne, Office of Youth Alternatives, for family counseling for school referred students/families. Mr. Segrave moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#5304)

Contract between the City of Cheyenne, Metropolitan Planning Organization, and Quinby Clune Design for the “Cheyenne Wayfinding Plan Phase II”. Mr. Segrave moved to approve in an amount not to exceed \$34,500.00, seconded by Mr. Brown. Upon inquiry, Tom Mason, MPO Director, provided MPO budget and staffing level information and explained financial assistance for the project by the Cheyenne Area Convention and Visitors Bureau, purpose of the signage and that the wayfinding signs will be specific to the Cheyenne community. He also provided information on Phase I of the project, state highway sign requirements and elements that will be involved in this next phase of the project, including sign design, location, content and cost estimates. He stated once the next phase has been completed, a plan will be provided to the governing body for proposed approval, and indicated future funding has not yet been identified. Discussion followed on hiring a consultant vs. utilizing city planning staff, need for quality community signage, and funding. Mr. Mason clarified that MPO planning funds can not be used for the signs. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Dr. Rinne voting “no”. (#5305)

[CA] Professional Services Contract between the City of Cheyenne, Metropolitan Planning Organization, and Western R&D, Ltd., for the West Allison Road Corridor Plan -- referred to Finance Committee.

[CA] Professional Services Contract between the City of Cheyenne, Cheyenne Metropolitan Planning Organization and Ayres Associates for the Missile Drive Corridor Plan -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, Victim Assistance Program, and the State of Wyoming, Division of Victim Services, for a Violence Against Women Act Law Enforcement Project (VAWA Federal Grant) -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Amendment No. 1 to City Contract No. 4699, between Laramie County, City of Cheyenne, and American Medical Response, for an extension to the Emergency Medical Service (EMS) Agreement -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5296 between the City of Cheyenne, Parks & Recreation Dept., and Naranjo Civil Constructors, for the Cheyenne Greenway – Safe Routes To School, (SRTS) Johnson-Goins Corridor Construction (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5066 between the City of Cheyenne, Engineering Dept., and Utah Pacific Bridge and Steel Ltd., for moving and storing bridge girders (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-4-09 for purchasing a bulk ice control product for the Public Works Department for use on city streets, from Desert Mountain Corp., Riverton, WY (2003-2006 and 2007-2010 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed \$341,400.00, seconded by Mr. Collins. Comments followed on environmental concerns involving the product, whether the product affects concrete, and product effectiveness. Upon inquiry, Mike Abel, Public Works Director, stated the product has been used for 8-9 years, with the exception of last year (lack of a storage site due to Street & Alley shop relocation); that Street & Alley staff have advised the product provides better effective results than a sand/salt mixture, and that the City's on-line "Request Partner" program tracks communications received from the public and that he would follow-up to see if any comments had been received pertaining to product concerns. Motion carried. Voting "yes" – all members of the governing body present with the exception of Ms. Case and Mr. Laybourn voting "no".

Consideration of Bid #R-5-09 for furnishing and installing one new stationary solid waste Knuckleboom Crane for the Transfer Station, from Northshore Manufacturing, Two Harbors, MN. Mr. Segrave moved to approve in an amount not to exceed \$146,435.00, seconded by Mr. Brown. Comment followed on communication received from a bidder expressing concerns that purchasing procedures had not been followed. Upon inquiry, Rudy Apodaca, Purchasing Director, provided information regarding the non-recommended bidder's concern with procedures, and advised other Wyoming municipalities are also receiving competitor complaints on bid procedures which have been utilized for a number of years, and that the current state of the economy may be a factor relative to complaints. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Consideration of Bid #M-02-09 for a contract between the City of Cheyenne and Edward Hawley, LLC, Torrington, WY, for the Deming/Walterscheid Blvd. Reconstruction Project (1999-2002 1% Sales Tax) (SLIB Grant) -- referred to Finance Committee.

[CA] Consideration of Bid #R-6-09 from Western Plains Machinery, Casper, WY, for furnishing one new three wheel street sweeper, and to trade a 1999 Johnson 4000 street sweeper, for the Street and Alley Dept. (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-7-09 from Tom Scott, Cheyenne, WY, for the surplus sale of bulk wood, for the Forestry Dept. -- referred to Finance Committee.

LICENSES/PERMITS/APPLICATIONS:

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for ENI, Inc. D/b/a Eagle's Nest, 1101 W. Lincolnway, Cheyenne, WY. (License currently held by Eagle's Nest, Inc. d/b/a Eagle's Nest, 1101 W. Lincolnway, Cheyenne, WY). Motion (per consent agenda) carried.

APPOINTMENTS:

Reappointment of Paul Frauendienst to the Building Code Board of Appeals and Elizabeth Davis to the Greater Cheyenne Arts Advisory Council. Mr. Collins moved to approve, seconded by

Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

Appointment of Richard Shanor to the Community Action of Laramie County Board, Robert Kanard to the Greenway Advisory Committee, Carrisa Pollard to the Planning Commission, Nicole Novotny to the Board of Adjustments, Jackie Smith to the Personnel Commission, and Phyllis Sherard to the Housing and Community Development Advisory Board. Mr. Collins moved to approve, seconded by Mr. Brown. April Brimmer Kunz commented on the appointment of Mr. Shanor. Concern was expressed with approving all of the proposed appointees en masse as one agenda item with Mayor Spiker advising a motion to divide the question could be offered. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”.

Following inquiry, no other City business was presented by the public. Mr. Brown moved to adjourn, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Broyles, Ms. Case and Mr. Laybourn voting “no”. The meeting was officially adjourned at 9:34 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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